

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUMC024712: MICHAEL LAZELLE, et al. vs MOUNTAIN VALLEY
HOMEOWNERS ASSN, et al.
07/20/2026 in Department 21
Motion to Compel Discovery Responses and Production of Documents**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion to Compel Further Discovery Responses and Production of Documents (*Opposed*)

Tentative Ruling:

Plaintiffs Michael and Sherri LaZelle’s motion to compel further responses and production of documents from Defendants Mountain Valley Homeowners Association and California HOA Solutions, LLC is DENIED. Plaintiffs’ request for monetary sanctions is DENIED.

The motion is timely, properly noticed, and supported by a sufficient meet-and-confer effort. The underlying April 20, 2026 supplemental demand, however, does not comply with CCP § 2031.030. It does not identify the particular responding defendant or set number and, most significantly, does not specify a date for production. The absence of a compliance date leaves no enforceable production deadline.

Plaintiffs also failed to file the separate statement required by California Rules of Court, rule 3.1345 with the motion. Their 150-page separate statement, filed for the first time with the reply, did not timely provide Defendants with the request-specific grounds for the motion. This deficiency is material because the motion concerns 105 requests. When a motion includes a procedurally defective separate statement (or fails to include one at all) a trial court is “well within its discretion to deny the motion to compel discovery on that basis.” (See *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-893.)

Plaintiffs have shown a legitimate basis for narrower discovery concerning their account, payments, assessments, liens, collection activity, amenity access, and related board actions. The

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present demands, however, also seek sweeping and potentially duplicative categories of governance, election, banking, insurance, litigation, executive-session, and electronic records. The Court will not rewrite or narrow 105 requests. The Davis-Stirling Act does not independently make every requested record discoverable or eliminate applicable statutory limitations and privileges.

Defendants' omnibus objection would not constitute a sufficient response to a valid inspection demand. Any properly served renewed demands must receive request-specific statements of compliance, inability to comply, or objection, with an adequate privilege log where necessary. Plaintiffs may serve new, appropriately narrowed demands that comply with CCP § 2031.030. Any renewed motion must be accompanied by a timely separate statement.

Sanctions are denied because Defendants acted with substantial justification in opposing the procedurally defective motion.

Counsel for Defendants to give notice.